Minutes of the Meeting of the Council of the Corporation of the Town of Ajax Held Electronically on Monday, June 21, 2021 at 7:00 p.m.

Alternative formats available upon request by contacting:
accessibility@ajax.ca *or 905-619-2529 ext. 3347*

Present:	Mayor	S. Collier
	Regional Councillors	M. Crawford
		S. Lee
		J. Dies
	Councillors	R. Tyler Morin
		A. Khan
		L. Bower

1. Call to Order & Land Acknowledgement

Mayor Collier called the meeting to order at 7:04 p.m. Regional Councillor Crawford acknowledged traditional treaty lands.

2. Disclosure of Pecuniary Interest

There were no disclosures of pecuniary interest.

3. Adoption of the Minutes

Moved by: L. Bower
Seconded by: S. Lee

That the following minutes of previous Council meetings be adopted:

- Regular Meeting of May 17, 2021;
- Special Meeting of May 19, 2021;
- Closed Session Meeting of May 19, 2021;
- Special Meeting of May 25, 2021;
- Closed Session Meeting of May 25, 2021;
- Special Meeting of June 7, 2021; and
- Closed Session Meeting of June 7, 2021

CARRIED

4. Question Period

Mayor Collier noted that members of the public were advised they could submit questions regarding the agenda to the Town Clerk up until noon on the day of the meeting. Alexander Harras, Manager of Legislative Services/Deputy Clerk, noted that the Ajax Professional

Firefighters Association (APFFA) wished to ask questions regarding item 7.2.1 on the meeting agenda.

Clive Deonarine, President, APFFA, asked questions regarding the status of the Fire Master Plan and timelines to implement the infrastructure and staffing recommendations outlined in the Fire Master Plan. Mayor Collier and Shane Baker, Chief Administrative Officer, responded to questions.

5. Delegations and Presentations

5.1 Delegation: Not Your TV Friendly Autism

Vanessa Shelley delivered a presentation regarding Level 3 Autism and discussed her son's cognitive function, violent tenancies and self-injuring compulsions. V. Shelley expressed concerns for her son's safety as well as her own, noting that there are 15 year wait lists for long-term care homes and insufficient financial supports available to help care for her son.

Council Members asked questions regarding Provincial changes to autism therapy, schooling opportunities available, types of facilities associated with long wait lists, and historic autism treatments. V. Shelley responded to questions from Council Members. Council Members thanked Ms. Shelley for her delegation.

With the consent of Members present, item 9.4 was advanced in the order business.

9. Business Arising from Notice of Motion

9.4 Support for Autistic Adults

Councillor Khan and Regional Councillor Dies introduced the motion and reviewed its contents.

Main Motion

Moved by: A. Khan
Seconded by: J. Dies

WHEREAS an Autism Spectrum Disorder (ASD) diagnosis is a neurodiverse condition that applies to an estimated 135,000 Ontarians, characterized by differences in the way that the individual communicates and relates to the world around them. As the word "spectrum" suggests, ASD impacts and challenges each individual differently, and in some cases includes co-occurring health concerns;

AND WHEREAS included on the ASD continuum are people at three different "levels", defined in relation to the amount of specialized supports and interventions they require to live independently, or participate in a neurotypical context. People labelled as level 3 require very substantial support. Often, persons identified as level 3 are not able to communicate verbally, can be impacted by extreme anxiety and rigidity in their routines, and are prone to severe emotional dysregulation, distress, violence and self-injuring behaviours, which cause tremendous safety concerns;

AND WHEREAS parents of people diagnosed with ASD, and specifically for those

impacted by a level 3 diagnosis, report “glaring gaps in the supports available, especially for autistic adults, people with lower incomes, people in rural areas, and Black, Indigenous and people of colour.” (Autism Ontario);

AND WHEREAS specifically, once a person turns 18, they typically lose access to most ASD government funding and services, which are largely geared toward children. Some of the most significant gaps in supports include long wait times and inaccessible or unaffordable respite care and housing. Group homes are often the best and safest living environments for people with level 3 ASD. A group home setting can offer 24-hour care, firm routine, access to social workers and other care providers, as well as appropriate supervision for social interactions and outings that working parents simply cannot provide. The need for appropriate and timely care has been highlighted and exacerbated by the Covid-19 pandemic;

AND WHEREAS over 14,000 individuals (and growing) with ASD are on waitlists for affordable housing (CBC, 2020), and individuals receiving funding from the Ontario Disability Support Program (ODSP) do not receive enough money to sustain access to private group home accommodations. The maximum single rate for ODSP in 2020 was $1,169/month ($14,028), compared to the cost of private group home living at $90,000/year, and parents are often financially unable to bridge the gap while providing necessities for themselves and other family members;

NOW THEREFORE BE IT RESOLVED THAT:

1. Ajax Council calls on the Province of Ontario to increase the supply of affordable, supportive housing and respite care options for both children and adults diagnosed with Autism Spectrum Disorder, equipped with access to wrap-around services, and prioritized by need;

2. Ajax Council requests that the Province of Ontario consider increasing the Ontario Disability Support Program allocations to provide individuals and families with more housing options for adults with Autism Spectrum Disorder; and

3. This motion be distributed to the Hon. Doug Ford, Premier of Ontario, the Hon. Peter Bethlenfalvy, Minister of Finance, the Hon. Todd Smith, Minister of Children, Community and Social Services, the Hon. Laurie Scott, Minister of Infrastructure, Rod Phillips, MPP for Ajax, all Durham Region MPPs, Chair John Henry, Region of Durham, and all Durham Region municipalities.

Amendment

Moved by: S. Lee
Seconded M. Crawford

1. That the motion be amended by adding the following provision between provisions 2 and 3:

   3. That Ajax Council calls on the federal government to expedite the development of a National Autism Strategy.

2. That provision #4 be amended by adding all Durham Region MPs and Prime Minister Justin Trudeau for circulation.

CARRIED

Main Motion as Amended

Moved by: A. Khan
Seconded by: J. Dies

WHEREAS an Autism Spectrum Disorder (ASD) diagnosis is a neurodiverse condition that applies to an estimated 135,000 Ontarians, characterized by differences in the way that the individual communicates and relates to the world around them. As the word "spectrum" suggests, ASD impacts and challenges each individual differently, and in some cases includes co-occurring health concerns;

AND WHEREAS included on the ASD continuum are people at three different "levels", defined in relation to the amount of specialized supports and interventions they require to live independently, or participate in a neurotypical context. People labelled as level 3 require very substantial support. Often, persons identified as level 3 are not able to communicate verbally, can be impacted by extreme anxiety and rigidity in their routines, and are prone to severe emotional dysregulation, distress, violence and self-injuring behaviours, which cause tremendous safety concerns;

AND WHEREAS parents of people diagnosed with ASD, and specifically for those impacted by a level 3 diagnosis, report "glaring gaps in the supports available, especially for autistic adults, people with lower incomes, people in rural areas, and Black, Indigenous and people of colour." (Autism Ontario);

AND WHEREAS specifically, once a person turns 18, they typically lose access to most ASD government funding and services, which are largely geared toward children. Some of the most significant gaps in supports include long wait times and inaccessible or unaffordable respite care and housing. Group homes are often the best and safest living environments for people with level 3 ASD. A group home setting can offer 24-hour care, firm routine, access to social workers and other care providers, as well as appropriate supervision for social interactions and outings that working parents simply cannot provide. The need for appropriate and timely care has been highlighted and exacerbated by the Covid-19 pandemic;

AND WHEREAS over 14,000 individuals (and growing) with ASD are on waitlists for affordable housing (CBC, 2020), and individuals receiving funding from the Ontario Disability Support Program (ODSP) do not receive enough money to sustain access to private group home accommodations. The maximum single rate for ODSP in 2020 was $1,169/month ($14,028), compared to the cost of private group home living at $90,000/year, and parents are often financially unable to bridge the gap while providing necessities for themselves and other family members;

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2. Ajax Council requests that the Province of Ontario consider increasing the Ontario Disability Support Program allocations to provide individuals and families with more housing options for adults with Autism Spectrum Disorder;

3. That Ajax Council calls on the federal government to expedite the development of a National Autism Strategy; and

4. This motion be distributed to the Hon. Doug Ford, Premier of Ontario, the Hon. Peter Bethlenfalvy, Minister of Finance, the Hon. Merrilee Fullerton, Minister of Children, Community and Social Services, the Hon. Kinga Surma, Minister of Infrastructure, the Hon. Rod Phillips, Minister of Long-Term Care and MPP for Ajax, all Durham Region MPPs, Chair John Henry, Region of Durham, all Durham Region municipalities, all Durham Region MPs, and Prime Minister Justin Trudeau for circulation.

CARRIED

Recorded Vote

In Favour: Councillor Khan, Regional Councillor Lee, Councillor Tyler Morin, Councillor Bower, Regional Councillor Crawford, Regional Councillor Dies, Mayor Collier

Opposed: None

With the consent of Members present, item 5.3 was advanced in the order business.

5.3 **Presentation: 2020 Financial Statements and Audit Report**

Lilian Cheung, Associate Partner, Deloitte, presented the results of the 2020 audit and the audited annual consolidated financial statements, noting that the audit of the financial statements was completed in accordance with Canadian generally accepted auditing standards. L. Cheung reviewed significant audit risks and events, being revenue recognition and management override of internal controls, and COVID-19 impacts, respectively.

5.2 **Presentation: Durham-Scarborough BRT Update**

Kristin Demasi, Project Manager, Metrolinx and Margaret Parkhill, Associate Director, IBI Group, delivered a presentation on the Durham-Scarborough Bus Rapid Transit project. K. Demasi reviewed the land acknowledgement, indigenous relations at Metrolinx, project study area, future employment and population density (2041), existing and future transit ridership projections, initial business case results (2018), and project schedule. M. Parkhill reviewed consultation to date, pubic feedback, proposed BRT stop locations, evaluation of design options, recommended 5-lane option in Pickering Village, preferred preliminary design, anticipated property impacts, traffic operations, safety benefits of centre-median lanes, cultural heritage, active transportation infrastructure, BRT platform access, BRT stop design, technical study updates, and next steps.

Council Members asked questions regarding the pinch point at Rotherglen Road and Elizabeth Road, 401 traffic patterns, opportunities for additional pedestrian crossways, 6 lane option impacts to Pickering Village, projected ridership, connectivity to Rotherglen Road, construction timelines, off road cycle tracks, funding, streetscape design methods to complement the heritage district, opportunities for staff and the Heritage Advisory Committee to provide input with respect to the heritage district, and cycling design for Highway 2. Dave Hopper, Lead Consultant, Parsons Corporation / IBI Group, and Mathieu Goetzke, Vice-Presient of Planning, Metrolinx, responded to questions from Council Members.

5.4 **Presentation: Construction Update 2021**

Ranil Fernando, Manager of Infrastructure & Asset Management, delivered a presentation on the 2021 capital projects update. R. Fernando highlighted capital projects dedicated to trails, parks and playgrounds, design, construction, building maintenance, asset management, and Regional Municipality of Durham 2021 capital construction projects in the Town of Ajax.

Council Members asked questions regarding road resurfacing and restoration on Ridley Drive, timeline for resurfacing for Brennan Road, traffic calming projects, project scope for Rotary Park Boardwalk, status of Annie Crescent Pedestrian Bridge, timeline for completion of the Paradise Park washrooms, and status of the pending Investing in Canada Infrastructure Program grand fund approval. R. Fernando, John Grieve, Transportation Supervisor, Andrew Jackson, Landscape Architect, and Kassandra Cruciano, Grants, Partnerships and Strategic Initiatives Coordinator, responded to questions from Council Members.

6. Correspondence

Motion to Suspend the Rules of Procedure

Moved by: L. Bower
Seconded by: R. Tyler Morin

That the Rules of Procedure be suspended in order to introduce an item of correspondence from the Ontario Big City Mayors.

CARRIED
on 2/3rds

Members separated correspondence items 6.9 and 6.11 for discussion.

Moved by: S. Lee
Seconded by: J. Dies

That the balance of the report (Items 6.1, 6.2, 6.3, 6.4, 6.5, 6.6, 6.7, 6.8 and 6.10) dated June 21, 2021 containing Items of Correspondence be received for information.

CARRIED

Item 6.9

Referral Motion

Moved by: R. Tyler Morin
Seconded by: A. Khan

That correspondence item #9 be referred to Legislative & Information Services staff for review and consideration, and that staff be directed to bring forward a report in the Fall of 2021 with recommendations.

CARRIED

Mayor Collier vacated the Chair. Regional Councillor Lee assumed the Chair.

Item 6.11

Council Members discussed the motion and supporting changes to infrastructure funding to address municipal infrastructure needs, noting that the Town of Ajax requires infrastructure funding flexibility to support stormwater management infrastructure.

Moved by: S. Collier
Seconded by: R. Tyler Morin

That the motion regarding Infrastructure Funding Flexibility adopted by Ontario's Big City Mayors at its meeting on June 18, 2021 be endorsed.

CARRIED

Mayor Collier resumed the Chair.

7. Reports

7.1. Community Affairs & Planning Committee Report

7.1.1 Community Affairs & Planning Committee, June 7, 2021

Moved by: A. Khan
Seconded by: J. Dies

That the Community Affairs & Planning Committee Report dated June 7, 2021 be adopted.

CARRIED

7.2 General Government Committee Report

7.2.1 Special General Government Committee, May 31, 2021

Moved by: M. Crawford
Seconded by: L. Bower

That the Special General Government Committee Report dated May 31, 2021, be adopted.

CARRIED

7.2 General Government Committee Report

7.2.2 General Government Committee, June 14, 2021

Moved by: M. Crawford
Seconded by: R. Tyler Morin

That the General Government Committee Report dated June 14, 2021, be adopted.

CARRIED

7.3 Summary of Advisory Committee Activities

Moved by: J. Dies

Seconded by: A. Khan

That the Summary of Advisory Committee Activities Report dated June 21, 2021, as attached to the meeting agenda be received for information, and that the recommendations contained therein be referred to staff where applicable.

CARRIED

Council recessed at 9:01 p.m.

Council resumed at 9:06 p.m.

7.4 Departmental Reports

7.4.1 PDS-2021-30: CPSP Ajax Nominee Inc. Amazon Fulfillment Centre Construction Administration Agreement for Rossland Road East Improvements and Salem Road North Multi-Use Path

Geoff Romanowski, Director of Planning and Development Services, reviewed the contents of the written report and recommendations contained therein. G. Romanowski noted that CPSP Ajax Nominee Inc. is entitled to cost reimbursement for construction works associated with the Rossland Road Environmental Assessment 4-lane widening and the Salem Road North multi-use Path.

Council Members sought clarification regarding costs to be repaid. Dianne Valentim, Director of Finance/Treasurer, responded to questions from Council Members.

Moved by: S. Lee
Seconded by: L. Bower

1. That the Town's solicitor be authorized to prepare a Construction Administration Agreement for the Rossland Road East road improvements identified under the Environmental Assessment (EA) and the Salem Road North multi-use path (MUP) associated with the subject lands, between the Town and CPSP Ajax Nominee Inc., substantially in the form as outlined in this report;

2. That CPSP Ajax Nominee Inc. be reimbursed the growth related costs in the form of Development Charge (DC) credits for transportation infrastructure related costs to an upset limit of $1,903,360.94 (before HST) based on the Town's evaluation of the fair market price of such infrastructure as outlined in this report;

3. That CPSP Ajax Nominee Inc. be compensated, to an upset limit $511,854.79 (before HST), for the non-growth related expenditures portion to be contributed no later than in the third quarter of 2027, as per the original timing of the completion of the Rossland Road capital project as indicated in the DC background study, or as otherwise indicated in the Construction Administration Agreement;

4. That Council approve the following maximum funding, to be allocated to Capital Account No. 1026411 Rossland Road Improvements – Salem to Carruthers Creek Bridge, subject to the issuance of DC credits and to available Development Reserve Funding:

   Development Charges $1,750,947.96

Development Reserve	$500,206.53
Total	$2,251,154.49

5. That Council approve the following funding, to be allocated to Capital Account No. 1026511 Salem MUP – Salem to Blowers (north leg), subject to the issuance of DC credits and to available Development Reserve Funding:

Development Charges	$185,912.13
Development Reserve	$20,656.90
Total	$206,569.03

CARRIED

7.4.2 **PDS-2021-31: Business Improvement Area (BIA) Director Appointments/Removals & Business Improvement Area (BIA) Comprehensive Review Update**

Council Members asked questions regarding anticipated timeline for completion of the comprehensive review, length of BIA director appointments, and potential consequences to appointing directors during the review period. G. Romanowski and Nicole Cooper, Director of Legislative & Information Services/Clerk, responded to questions from Council Members.

Moved by: M. Crawford
Seconded by: S. Lee

1. That this report be received for information.

CARRIED

7.4.3 **Ajax Public Library Board Report: Library Services 2021 Spring Update**

Sarah Vaisler, Chief Executive Librarian, highlighted a number of accomplishments that the library has achieved since 2021.

Members of Council asked questions regarding the Makerspace strategy including cost estimates, projected timelines, and budget process. S. Vaisler responded to questions from Council Members.

Moved by: S. Lee
Seconded by: L. Bower

1. That the Library Services 2021 Spring Update be received for information.

CARRIED

8. Regional Councillors' Report

Regional Council Members noted that Durham Region's blue box lid project is not moving forward. Members noted that Durham Region Transit is offering enhanced services and routes across the region including Route 224 servicing Paradise Park, Veterans' Point Gardens and Audley Recreation Centre commencing this weekend through to Labour Day.

Council Members asked if e-bikes are permitted on roads and what the cost is for the

recycling lids. Derek Hannan, Manager of By-law Services, responded to questions from Council Members.

Moved by: A. Khan
Seconded by: R. Tyler Morin

That the Regional Councillors' Reports of June 21, 2021 be received for information.

CARRIED

9. Business Arising from Notice of Motion

Motion to Suspend the Rules of Procedure

Moved by: R. Tyler Morin
Seconded by: L. Bower

That the Rules of Procedure be suspended in order to introduce a motion without notice regarding Addressing Online Hate.

CARRIED
on 2/3rds

Mayor Collier vacated the Chair. Regional Councillor Lee assumed the Chair.

9.1 Acceleration of Automated Speed Enforcement Program in Ajax

Motion to Reconsider

Moved by: S. Collier
Seconded by: R. Tyler Morin

That Council reconsider its resolution passed on February 8, 2021 directing that the Automated Speed Enforcement program be considered in the 2022 Operating Budget.

CARRIED
on 2/3rds

Mayor Collier and Regional Councillor Crawford introduced the motion and reviewed its contents. John Grieve, Transportation Supervisor, responded to questions regarding timelines for installation of speed boards.

Moved by: S. Collier
Seconded by: M. Crawford

WHEREAS speeding continues to be a major safety concern for the public and Ajax Council;

AND WHEREAS Automated Speed Enforcement (ASE) helps make streets safer for everyone by acting as a speeding deterrent, encouraging drivers to slow down and obey the speed limit;

AND WHEREAS the ASE tool is a proven investment in road safety used by many municipalities to enforce speed limits in community safety zones, including the Region of

Durham, who use the cameras on regional roads in support of Durham Vision Zero, a long-term plan to create a safer transportation system and ensure no lives are lost or serious injuries occur on Durham's roadways;

AND WHEREAS advancing the Town's ASE program will complement and enhance other initiatives underway to make our streets safer, including the Town's establishment of additional Community Safety Zones and implementation of traffic calming measures on Town roads, Durham Regional Police Service's road safety initiatives and Durham Region's ASE program;

AND WHEREAS Town staff are finalizing the specific details and operation of a Town ASE program, including data monitoring, retaining a contract ASE Transportation Technologist, as well as reviewing agreements and sourcing required regulatory signs;

NOW THEREFORE BE IT RESOLVED THAT:

1. Staff be directed to enter into the necessary agreements to implement the Town's ASE program in 2021, including providing appropriate notice and procuring three portable ASE units for installation;

2. Council and staff continue to advocate for the Region of Durham to implement a single Region-wide ASE program which would incorporate lower-tier municipal programs with the Region's program in order to maximize program resources, improve efficiencies and reduce overall administrative costs associated for all Durham municipalities operating an ASE program; and

3. This motion be circulated to all Durham municipalities and the Region of Durham.

CARRIED

Recorded Vote

In Favour: Mayor Collier, Councillor Bower, Regional Councillor Crawford, Regional Councillor Dies, Councillor Khan, Councillor Tyler Morin, Regional Councillor Lee

Opposed: None

9.2 Permanent Installation of Mississaugas of Scugog First Nation Flag at Town Hall

Mayor Collier and Councillor Khan introduced the motion and reviewed its contents.

Moved by: S. Collier
Seconded by: A. Khan

WHEREAS Indigenous Peoples (First Nation, Metis and Inuit) have been systematically targeted throughout history to privilege the settlers of Canada;

AND WHEREAS this dark and painful history of Indigenous colonization resulted in the seizure of land, forced removals, the intentional control of natural resources, assimilation, genocide, and infringements on basic human rights;

AND WHEREAS in 2015, The Truth and Reconciliation Commission released 94 Calls to Action for levels of government to take towards truth (acknowledging the long history and traumas of colonialism and residential schools), healing and reconciliation;

AND WHEREAS as a first step towards reconciliation, the Town of Ajax implemented a traditional land acknowledgment in March 2017 (updated in 2020) that is read at the beginning of Ajax Council meetings and events to recognize that the Town is situated within the traditional territory of the Anishinaabe People of Mississaugas of Scugog Island First Nation, signatories of the Gunshot Treaty of 1788 and the Williams Treaties of 1923;

AND WHEREAS the City of Thunder Bay and the Town of Oakville have further acknowledged First Nations by permanently flying flags representing the traditional custodians of the territory at municipal sites;

NOW THEREFORE BE IT RESOLVED THAT:

1. Staff be directed to install a fourth flagpole at Ajax Town Hall to permanently fly the Mississaugas of Scugog Island First Nation flag by the end of summer 2021; and

2. Staff be directed to coordinate a traditional smudging ceremony prior to the installation of the flagpole and raising of the Mississaugas of Scugog Island First Nation flag.

CARRIED

Recorded Vote

In Favour: Councillor Khan, Councillor Tyler Morin, Mayor Collier, Councillor Bower, Regional Councillor Crawford, Regional Councillor Dies, Regional Councillor Lee

Opposed: None

9.3 **Call for National Action Summit on Islamophobia**

Councillor Khan and Mayor Collier introduced the motion and reviewed its contents.

Moved by: A. Khan
Seconded by: S. Collier

WHEREAS the National Council of Canadian Muslims released an open letter on June 8, 2021 to the Prime Minister about addressing Islamophobia;

AND WHEREAS the lethal and violent attacks on the Canadian Muslim community are an ongoing reality, as demonstrated by the recent hate-motivated killing of a Muslim family in London and the Quebec City Mosque shooting in 2017;

AND WHEREAS strong action on Islamophobia (which the public has rallied and asked for) is often met with great political and partisan resistance, divisiveness and opposition such as M-103, the Systemic Racism and Religious Discrimination of Islamophobia motion passed by the House of Commons in March 2017, calling on the Government of Canada to condemn and address Islamophobia and systemic religious and racial discrimination;

AND WHEREAS putting an end to Islamophobia requires a whole government approach (including federal, provincial and municipal involvement) and concrete action to address Islamophobia;

NOW THEREFORE BE IT RESOLVED THAT:

1. Ajax Council supports the call from the National Council of Canadian Muslims for the Government of Canada to hold an urgent National Action Summit on Islamophobia, convening leaders from all levels of government to chart an actionable path forward to end violence against Muslims;

2. Ajax Council calls on the Province of Ontario to provide funding to municipalities and community organizations to develop "street level" anti-racism programs to quell all forms of hate, including Islamophobia;

3. Ajax Council calls on the Province of Ontario and all school boards to embed anti-racism learnings in the school curriculum, making it a fundamental and core element of our education system;

4. The Town continue to work with the Region of Durham and Durham Regional Police Service to develop concrete actions through the Region's Community Safety and Wellness Plan to address local reports of racial and hate inflicted violence to set a zero tolerance approach to racism in Durham Region;

5. The Town's Diversity and Inclusion Coordinator be directed to work with partners and relevant committees (Ajax Anti-Black Racism Task Force and Durham Region's Anti-Racism Task Force) to collaborate and address the increasing public climate of hate and fear and develop anti-racism and anti-Islamophobia resources and actions, including re-launching the Ajax for All educational campaign; and

6. This motion be shared with The Rt. Hon. Justin Trudeau, Prime Minister of Canada; the Hon. Mark Holland, Member of Parliament for Ajax; the Hon. Doug Ford, Premier of Ontario; Rod Phillips, Member of Provincial Parliament for Ajax; Durham Region Chair John Henry; the Durham Regional Police Service; all Durham Region municipalities; the Durham District School Board, Durham District Catholic School Board; Conseil scolaire Viamonde; Conseil scolaire catholique MonAvenir; the National Council of Canadian Muslims; the Ajax Anti-Black Racism Task Force, and the Durham Region's Anti-Racism Task Force.

CARRIED

Recorded Vote

In Favour: Councillor Tyler Morin, Mayor Collier, Councillor Bower, Regional Councillor Crawford, Regional Councillor Dies, Councillor Khan, Regional Councillor Lee

Opposed: None

Mayor Collier resumed the Chair.

9.5 **Construction Noise**

Regional Councillor Crawford and Councillor Bower introduced the motion and reviewed

its contents.

Moved by: M. Crawford
Seconded by: L. Bower

WHEREAS on April 7, 2020 the Government of Ontario enacted O.Reg. 131/20 under the Municipal Act, 2001, which served to temporarily suspend the power of municipalities to prohibit or regulate construction-related noise between the hours of 6 a.m. and 10 p.m., or any time of the day if construction is related to the healthcare sector;

AND WHEREAS throughout the Covid-19 pandemic, more residents than ever have been mandated to work from home, and subject to Stay Home Orders;

AND WHEREAS noise levels around residents' homes and neighbourhoods can have a significant impact on ability to focus (with consequences for productivity and work-life balance) and overall quality of life;

AND WHEREAS O.Reg. 131/20 is in force until October 7, 2021, and the Region of Peel has requested that the Regulation be rescinded;

NOW THEREFORE BE IT RESOLVED THAT Ajax Council request that O.Reg 131/20 be rescinded to limit disruption to residents;

AND THAT staff be encouraged to consider noise by-law exemptions for expedited health-care related projects and other priority projects that support Ajax businesses, where deemed appropriate;

AND THAT this motion be distributed to the Hon. Steve Clark, Minister of Municipal Affairs and Housing, Rod Phillips, MPP for Ajax, and Chair Henry, Region of Durham.

CARRIED

9.6 **Vehicle Noisemaker Muffler Systems**

Regional Councillor Crawford and Councillor Tyler Morin introduced the motion and reviewed its contents. Regional Councillor Crawford responded to questions on the motion from Council Members.

Moved by: M. Crawford
Seconded by: R. Tyler Morin

WHEREAS according to section 75 of the *Highway Traffic Act* (*HTA*), every motor vehicle shall be equipped with a muffler in good working order and in constant operation to prevent excessive or unusual noise and excessive smoke, and no person shall use a muffler cut-out, straight exhaust, gutted muffler, Hollywood muffler, by-pass or similar device upon a motor vehicle;

AND WHEREAS the act of modifying the exhaust system of a motor vehicle is not currently an offence under the *HTA*, and as a result muffler and auto-body shops continue to provide such services to individuals who choose to modify their vehicles which could make these vehicles less safe;

AND WHEREAS Durham Regional Police Service has been actively laying charges (49 to date) pursuant to section 75 of the *HTA* against motor vehicle operators whose vehicles

make excessive or unusual noise or produce excessive smoke from muffler systems that have been modified;

AND WHEREAS Ajax Council continues to receive negative feedback about an increase in noise due to modified vehicles on Regional and local roads;

AND WHEREAS on October 28, 2019, the Province of Ontario introduced *Bill 132, Better for People, Smarter for Business Act, 2019* which in part sought to amend the *HTA* to include a new section 75.1 that will make it an offence to tamper with motor vehicles by (a) removing, bypassing, defeating or rendering inoperative all or part of a motor vehicle's emission control system or (b) modifying a motor or motor vehicle in any way that results in increased emissions from the level to which it was originally designed or certified by the manufacturer of the motor or motor vehicle, as well as prohibit the sale of tampering devices that can create excessive noise or smoke on our streets and in our neighbourhoods;

AND WHEREAS Bill 132 received Royal Assent on December 10, 2019, however, the Lieutenant Governor has not yet proclaimed section 75.1 of the *HTA*;

AND WHEREAS the City of Mississauga has passed two motions (August 2020 and May 2021), and Region of Peel also passed a motion (May 2021) calling on the Province of Ontario to immediately proclaim and bring into force section 75.1 of the *HTA*;

NOW THEREFORE BE IT RESOLVED THAT:

1. Ajax Council urge the Province of Ontario to work with the Lieutenant Governor to expedite the proclamation of section 75.1 of the *Highway Traffic Act (Better for People, Smarter for Business Act, 2019, S.O. 2019, c. 14, Sched. 16, s. 11);*

2. The Ministry of Transportation be requested to set a maximum decibel count for exhaust systems to ensure that exhaust systems with the capability of exceeding 80 decibels will not be available for sale and will not be permitted in the Province of Ontario, and consider reviewing and increasing associated penalties for non-compliance;

3. The Province of Ontario be requested to provide funding for police services in Ontario to be equipped with approved decibel monitor devices to aid in effective enforcement efforts; and

4. A copy of this motion be sent to the Hon. Caroline Mulroney, Minister of Transportation, the Hon. Rod Phillips, Minister of Long-Term Care and MPP for Ajax, all Durham Region Members of Provincial Parliament, the Region of Durham, all Durham municipalities, Durham Regional Police Service, and the Ontario Provincial Police.

CARRIED

9.7 **Provincial Road Safety**

Regional Councillor Crawford and Councillor Khan introduced the motion and reviewed its contents.

Moved by: M. Crawford
Seconded by: A. Khan

WHEREAS Vision Zero is an approach to road safety thinking based on the premise that no loss of life resulting from a motor vehicle collision is acceptable, and has been adopted by municipalities across Canada and around the world, including Durham Region, to inform their Durham Vision Zero Strategic Road Safety Action Plan;

AND WHEREAS as part of Vision Zero Canada's mission, using Vision Zero as a guiding principle, safety is prioritized over factors such as cost, speed, delay, level of service, and convenience - factors upon which decisions were traditionally made;

AND WHEREAS the Canadian Council of Motor Transportation Administrators (CCMTA) is the custodian of the *Road Safety Strategy 2025*, which encourages all road safety stakeholders to make Canada's roads the safest in the world and adopts a "safe systems approach", a key component of Vision Zero;

AND WHEREAS the Ontario Good Roads Association (OGRA) has repeatedly requested the Province of Ontario to establish a Provincial Vision Zero Strategy;

AND WHEREAS following a City of Mississauga Council endorsement of the OGRA request and letter to the Minister of Transportation, the Minister indicated that the Province supports federal measures for road safety, but did not address a provincial Vision Zero strategy. The request by OGRA and Mississauga has since been reinforced by a motion of Peel Region Council;

AND WHEREAS all local and regional Vision Zero strategies would be better supported, more consistent and effective with provincial buy-in and a dedicated provincial strategy in place. For example, current automated speed enforcement (ASE) regulations only permit installation in community safety zones and school zones, without the ability for municipalities to strategically utilize ASE equipment in a timely way to collect data in support of Vision Zero goals;

NOW THEREFORE BE IT RESOLVED THAT:

1. Ajax Council affirm their support for Durham Region's Vision Zero goals and the Durham Vision Zero Strategic Road Safety Action Plan;

2. Ajax Council requests that the Province of Ontario take immediate steps to consult on a province-wide Vision Zero strategy framework;

3. Ajax Council requests that the Province of Ontario amend the Automated Speed Enforcement regulations under the *Highway Traffic Act* to allow for greater flexibility for the use of ASE by Ontario municipalities;

4. This request be shared with the Region of Durham and local Durham municipalities for their support; and

5. This motion be distributed to the Hon. Caroline Mulroney, Minister of Transportation, and Rod Phillips, MPP for Ajax.

CARRIED

9.8 **Waterfront Paid Parking Permit Program**

Regional Councillor Dies and Councillor Bower introduced the motion and reviewed its contents. Council Members asked questions regarding projected revenues and the

number of registrants. D. Valentim and N. Cooper responded to questions from Council Members.

Main Motion

Moved by: J. Dies
Seconded by: L. Bower

WHEREAS a new Waterfront Management Plan was introduced in May 2021 to address rising instances of public nuisance, and strike an appropriate balance between the needs of various groups who enjoy the waterfront (residents, non-residents, organized groups, etc.);

AND WHEREAS the parking management program introduced as part of the Waterfront Management Plan has garnered significant public feedback, both positive and negative since implementation in mid-May, 2021;

AND WHEREAS Council deems it expedient to respond to the feedback received to date and consider adjustments to the parking management program;

NOW THEREFORE BE IT RESOLVED:

1. That the fee for parking on the waterfront immediately be reduced from $20 to $10;

2. That staff be directed to undertake a fulsome review of the Waterfront Parking Management Program after its first season of operation, and report back to Council or the appropriate standing committee with recommendations for the 2022 season;

3. That such review include, at minimum, examination of the following items:

    a. Tiered fee structure (e.g. 1 hour, half day, full day);
    b. A free parking solution for waterfront-proximate residents having a large number of guests;
    c. Potential relaxation of the permit issuance process such that it would not require residents to apply annually;
    d. A re-examination of whether all the ‘feeder streets’ included in the program should continue with existing restrictions;
    e. Expanding eligibility for free waterfront permits to include non-resident business owners; and

4. That the review process include a resident feedback survey, conducted after the conclusion of the first season.

Mayor Collier vacated the Chair. Regional Councillor Lee assumed the Chair.

Amendment

Moved by: S. Collier
Seconded by: A. Khan

That item #1 of the motion be deleted.

CARRIED

Recorded Vote

In Favour: Mayor Collier, Regional Councillor Crawford, Councillor Khan, Councillor Tyler Morin, Regional Councillor Lee

Opposed: Councillor Bower, Regional Councillor Dies

Mayor Collier resumed the Chair.

Main Motion as Amended

Moved by: J. Dies
Seconded by: L. Bower

WHEREAS a new Waterfront Management Plan was introduced in May 2021 to address rising instances of public nuisance, and strike an appropriate balance between the needs of various groups who enjoy the waterfront (residents, non-residents, organized groups, etc.);

AND WHEREAS the parking management program introduced as part of the Waterfront Management Plan has garnered significant public feedback, both positive and negative since implementation in mid-May, 2021;

AND WHEREAS Council deems it expedient to respond to the feedback received to date and consider adjustments to the parking management program;

NOW THEREFORE BE IT RESOLVED:

1. That staff be directed to undertake a fulsome review of the Waterfront Parking Management Program after its first season of operation, and report back to Council or the appropriate standing committee with recommendations for the 2022 season;

2. That such review include, at minimum, examination of the following items:

    a. Tiered fee structure (e.g. 1 hour, half day, full day);
    b. A free parking solution for waterfront-proximate residents having a large number of guests;
    c. Potential relaxation of the permit issuance process such that it would not require residents to apply annually;
    d. A re-examination of whether all the 'feeder streets' included in the program should continue with existing restrictions;
    e. Expanding eligibility for free waterfront permits to include non-resident business owners; and

3. That the review process include a resident feedback survey, conducted after the conclusion of the first season.

CARRIED

9.9 **Addressing Online Hate**

Councillor Khan and Regional Councillor Crawford introduced the motion and reviewed its contents.

Moved by: A. Khan
Seconded by: M. Crawford

WHEREAS the Canadian Charter of Rights and Freedoms enshrines legal protections to groups identified by colour, race, religion, national or ethnic origin, age, sex, sexual orientation, gender identity or expression, or mental or physical disability;

AND WHEREAS religious groups, racialized communities, Blacks, Indigenous people, and LGBTQ2SI individuals are disproportionately targeted by online hate speech;

AND WHEREAS among reported hate crimes targeting a religion in 2019, the Jewish and Muslim populations continue to be the most frequent targets, accounting for 49% and 30% of crimes against a religion, respectively (Statistics Canada);

AND WHEREAS in 2019, there were more police-reported hate crimes targeting race or ethnicity, specifically Arab or West Asians and Blacks, as well an increase in crimes targeting sexual orientation (Statistics Canada);

AND WHEREAS with the rise of online hate speech on the Internet, the federal government must urgently introduce new laws to govern online spaces, and hold individuals and operators accountable as the current system is clearly failing – impacting mental health and putting all Canadians' freedoms at risk;

AND WHEREAS a poll (2021), conducted by Abacus Data for the Canadian Race Relations Foundation, documents the following:

- Widespread concern among Canadians about the rise and impact of online hate;
- 1 in 5 Canadians have experienced some form of online hate, harassment or aggressive behaviour;
- Racialized Canadians are almost three times more likely to have experienced this kind of behaviour online;
- Most Canadians believe the federal government should do more to prevent the spread of online hate and racism in Canada;
- 80 per cent of Canadians support a requirement that social media companies remove hateful content within 24 hours;

AND WHEREAS a federal election is expected to be held in fall 2021;

NOW THEREFORE BE IT RESOLVED THAT:

1. Ajax Council supports the introduction of tougher federal online hate speech legislation, including a civil remedy for individuals to pursue; more effective enforcement of public incitement of hate; and compelling online operators to monitor and remove online hate in a timely matter or risk facing substantial fines;

2. Ajax Council calls on all the federal parties to put forth a national strategy on preventing the spread of online hate and racism in Canada for consideration by voters during the next federal election;

3. The Region of Durham and Durham Region Police Service through the development of the Region's Community Safety and Wellness Strategy consider the establishment

of a specialized hate crime unit to pursue cases of online hate, and to conduct education and outreach on the importance of reporting hate crimes and hate incidents;

4. Ajax Council directs the Town's Diversity and Inclusion Coordinator to partner with faith-based groups and community organizations (i.e. YMCA's Block Hate: Building Resilience against Online Hate Speech) working to educate the public as to what constitutes online hate and how to report acts of online hate; and

5. This motion be distributed to the Rt. Hon. Justin Trudeau, Prime Minister of Canada; Hon. Mark Holland, MP for Ajax; Hon. Erin O'Toole, Leader of the Conservative Party of Canada and Leader of the Official Opposition; Jagmeet Singh, Leader of the New Democratic Party of Canada; Annamie Paul, Leader of the Green Party of Canada; Durham Region Members of Parliament; Chairman John Henry; and Durham Region municipalities.

CARRIED

10. By-laws

Moved by: S. Lee
Seconded by: L. Bower

That By-law numbers 38-2021 to 46-2021 be read a first, second and third time and passed.

CARRIED

11. Notice of Motion

There were no notices of motion.

12. New Business - Notices & Announcements

Members of Council thanked staff for organizing the indigenous memorial and raising the flag, and acknowledged Durham Regional Police Service for their work with Ajax Municipal Housing Corporation and their dedication to community healing.

Members of Council highlighted upcoming events and activities including the second installment of a Diversity Exchange Speaker Series on Racism and Anti-Black Racism on June 24, 2021, a community Ward 2 meeting on June 28, 2021, and that Trailfest in Ajax began on June 21st.

13. Confirming By-Law

Moved by: J. Dies
Seconded by: R. Tyler Morin

That By-law number 47-2021 being a by-law to confirm the proceedings of the Council of the Corporation of the Town of Ajax at its meeting held on June 21, 2021 be read a first, second and third time and passed.

CARRIED

14. Adjournment

Moved by: M. Crawford
Seconded by: A. Khan

That the June 21, 2021 meeting of the Council of the Town of Ajax be adjourned (10:46 p.m.)

CARRIED

_____
Mayor

_____
D-Clerk